

Rest breaks at work

1. Overview

Workers over 18 are usually entitled to 3 types of break:

- rest breaks at work
- daily rest
- weekly rest

Rest breaks at work

Workers have the right to one uninterrupted 20 minute rest break during their working day, if they work more than 6 hours a day. This could be a tea or lunch break.

The break does not have to be paid - it depends on their employment contract.

Daily rest

Workers have the right to 11 hours rest between working days. For example, if they finish work at 8pm, they should not start work again until 7am the next day.

Weekly rest

Workers have the right to either:

- an uninterrupted 24 hours without any work each week
- an uninterrupted 48 hours without any work each fortnight

A worker's employment contract may say they're entitled to more or different rights to breaks from work.

Work that puts health and safety at risk

An employer should give an employee enough breaks to make sure their health and safety is not at risk if that work is 'monotonous' (for example, work on a production line).

Domestic workers in a private house (for example, a cleaner or au pair) are not entitled to rest breaks for health and safety reasons.

2. Taking breaks

Employers can say when employees take rest breaks during work time as long as:

- the break is taken in one go somewhere in the middle of the day (not at the beginning or end)
- workers are allowed to spend it away from their desk or workstation (this means away from where they actually work)

It does not count as a rest break if an employer says an employee should go back to work before their break is finished.

Unless a worker's employment contract says so, they do not have the right to:

- take smoking breaks
- get paid for rest breaks

Exceptions and special circumstances

There are [exemptions \(/rest-breaks-work/exceptions\)](/rest-breaks-work/exceptions) to the rights to rest breaks.

Some workers are entitled to [compensatory rest breaks \(/rest-breaks-work/compensatory-rest\)](/rest-breaks-work/compensatory-rest), for example, shift workers.

[Young people \(/rest-breaks-work/young-workers\)](/rest-breaks-work/young-workers) and [lorry and coach drivers \(/drivers-hours\)](/drivers-hours) have different rights to rest breaks.

3. Compensatory rest

Workers may be entitled to 'compensatory rest' if they do not have the right to specific rest breaks. Compensatory rest breaks are the same length of time as the break (or part of it) that they've missed.

A worker may be entitled to compensatory rest if:

- they're a shift worker and cannot take daily or weekly rest breaks between ending one shift and starting another

- their workplace is a long way from their home (for example, an oil rig)
- they work in different places which are a reasonable distance from each other
- they're doing security and surveillance-based work
- they're working in an industry which is very busy at certain times of the year – like agriculture, retail, postal services or tourism
- they need to work because there's an exceptional event, an accident or a risk that an accident is about to happen
- the job needs round-the-clock staffing so there are no interruptions to any services or production (for example, hospital work)
- they work in the rail industry on board trains or their job is linked to making sure trains run on time
- their working day is split up (for example, they're a cleaner and work for part of the morning and the evening)
- there is an agreement between management, trade unions or the workforce (a 'collective' or 'workforce' agreement) that has changed or removed rights to these rest breaks for a group of workers

The total rest entitlement for a week is 90 hours a week on average - this does not include breaks at work, which are additional.

4. Exceptions

Workers are not entitled to the 3 general [types of rest break \(/rest-breaks-work\)](#) if they work in:

- the armed forces, emergency services or police and they're dealing with an exceptional catastrophe or disaster
- a job where they freely choose what hours they work (like a managing director) or where the work is not measured (for example, no set hours)
- sea transport
- air or road transport (known as 'mobile' workers)

Air, sea or road transport workers may be covered by special rules that give them different rest rights.

Mobile workers not covered by any special rules usually have the right to regular rest so that their health and safety (or anyone else's) is not put at risk.

There are also special rules for [young workers \(/rest-breaks-work/young-workers\)](#) and for [lorry and coach drivers \(/drivers-hours\)](#).

5. Young workers

Young workers (above [school leaving age \(/know-when-you-can-leave-school\)](#) and under 18) are usually entitled to:

- a 30 minute rest break if they work more than 4.5 hours (if possible this should be one continuous break)
- daily rest of 12 hours
- weekly rest of 48 hours

Exceptions for young workers

Young workers sometimes are not entitled to daily rest or rest breaks at work if their work has to be done because of an exceptional event (for example, an accident).

This is only where:

- there is no worker over 18 who can do the work
- the work is temporary and must be done immediately

Compensatory rest for young workers

Young workers have the right to [compensatory rest \(/rest-breaks-work/compensatory-rest\)](#) if they are not entitled to daily rest or rest breaks at work. This is the same amount of rest that they should have had. It can be taken just after any rest they've missed but it must be taken within the following 3 weeks.

6. Disputes

Workers who cannot take or are not allowed rest breaks should speak to their manager informally.

Get more information for [employees who want to raise a grievance \(/raise-grievance-at-work\)](#) or [advice for employers on handling grievances \(/handling-employee-grievance\)](#) if there is a disagreement about rest breaks.

Workers can also get advice on rest breaks from the [Acas helpline \(/pay-and-work-rights\)](#).

If a worker cannot solve a problem, they may be able to make a claim to an [employment tribunal. \(/employment-tribunals\)](/employment-tribunals)



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